shall be allowed to enter any State, Territory, or District of the United States from the Hawaiian Islands. (Apr. 30, 1900, ch. 339, § 101, 31 Stat. 161.)

§ 295. Laws made applicable to island territory.

The provisions of law contained in this chapter shall apply to the island territory under the jurisdiction of the United States, and prohibit the immigration of Chinese laborers, not citizens of the United States, from such island territory to the mainland territory of the United States, whether in such island territory at the time of cession or not, and from one portion of the island territory of the United States to another portion of said island territory; but they shall not apply to the transit of Chinese laborers from one island to another island of the same group; and any islands within the jurisdiction of any State or the Territory of Alaska shall be considered a part of the mainland under this section. (Apr. 29, 1902, ch. 641, § 1, 32 Stat. 176; Apr. 27, 1904, ch 1630, § 5, 33 Stat. 428.)

§ 296. Regulations for execution of law.

The Attorney General is authorized and empowered to make and prescribe, and from time to time to change, such rules and regulations not inconsistent with the laws of the land as he may deem necessary and proper to execute the provisions of this chapter, and with the approval of the President to appoint such agents as he may deem necessary for the efficient execution of this chapter. (Apr. 29, 1902, ch. 641, § 2, 32 Stat. 176; Apr. 28, 1904, No. 34, 33 Stat. 591; Mar. 4, 1913, ch. 141, § 3, 37 Stat. 737; Reorg. Plan No. V, eff. June 14, 1940, 5 Fed. Reg. 2423, 54 Stat. 1238.)

§ 297. Certificates of residence in insular territory; regulations for Philippines.

It shall be the duty of every Chinese laborer, other than a citizen, rightfully in, and entitled to remain in any of the insular territory of the United States on April 29, 1902 (Hawaii excepted), to obtain within one year thereafter a certificate of residence in the insular territory wherein he resides, which certificate shall entitle him to residence therein, and upon failure to obtain such certificate as herein provided he shall be deported from such insular territory; and the Philippine Legislature is authorized and required to make all regulations and provisions necessary for the enforcement of this section in the Philippine Islands, including the form and substance of the certificate of residence so that the same shall clearly and sufficiently identify the holder thereof and enable officials to prevent fraud in the transfer of the same: *Provided, however,* That if said Philippine Commission shall find that it is impossible to complete the registration herein provided for within one year from April 29, 1902, said Commission is hereby authorized and empowered to extend the time for such registration for a further period not exceeding one year. (Apr. 29, 1902, ch. 641, § 4, 32 Stat. 177; Aug. 29, 1916, ch. 416, § 12, 39 Stat. 548.)

§ 298. Bertillon system of identification.

So much of the amounts appropriated to prevent unlawful entry of Chinese into the United States, by the appointment of suitable officers to enforce the laws in relation thereto, and for expenses of returning to China all Chinese persons found to be unlawfully in the United States, including the cost of imprisonment and actual expense of conveyance of Chinese persons to the frontier or seaboard for deportation or for similar purposes, as may be necessary shall be available for the establishment and maintenance of the Bertillon system of identification at the various ports of entry; but the foregoing provision shall not apply to officials, teachers, students, merchants, or travelers for curiosity or pleasure, or Chinese laborers in transit across the territory of the United States in the course of their journey to or from other countries. (Mar. 17, 1894, Art. III, 28 Stat. 1211; Apr. 28, 1904, ch. 1762, § 1, 33 Stat. 478.)

§ 299. Deportation officer.

All Chinese persons ordered deported under judicial writs shall be delivered by the marshal of the district or his deputy into the custody of any officer designated for that purpose by the Attorney General, for conveyance to the frontier or seaboard for deportation in the same manner as aliens deported under the immigration laws. (June 23, 1913, ch. 3, § 1, 38 Stat. 65; Reorg. Plan No. V, eff. June 14, 1940, 5 Fed. Reg. 2423, 54 Stat. 1238.)

Chapter 8.—THE COOLY TRADE

Sec.
331. Cooly trade prohibited.
332. Same; forfeiture of vessels.
333. Building vessels to engage in cooly trade; penalty.
334. Punishment for engaging in cooly trade.
335. Voluntary immigration of "coolies" excepted.
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337. Examination of vessels.
338. Involuntary transportation of Chinese, Japanese, etc., for purpose of holding to service; penalty; contracts void.
339. Contracting to supply cooly labor.

§ 331. Cooly trade prohibited.

No citizen of the United States, or foreigner coming into or residing within the same, shall, for himself or for any other person, either as master, factor, owner, or otherwise, build, equip, load, or otherwise prepare, any vessel, registered, enrolled, or licensed, in the United States, for the purpose of procuring from any port or place the subjects of China, Japan, or of any other oriental country, known as "coolies", to be transported to any foreign port, or place, to be disposed of, or sold, or transferred, for any time, as servants or apprentices, or to be held to service or labor. (R. S. § 2158.)

DERIVATION

Acts Feb. 19, 1862, ch. 27, § 1, 12 Stat. 340; Feb. 9, 1869, ch. 24, 15 Stat. 269.

§ 332. Same; forfeiture of vessels.

If any vessel, belonging in whole or in part to a citizen of the United States, and registered, enrolled, or otherwise licensed therein, be employed in the "cooly trade", so called, contrary to the provisions of section 331 of this title, such vessel, her tackle, apparel, furniture, and other appurtenances, shall be forfeited to the United States, and shall be liable to be seized, prosecuted, and condemned in any of the district courts of the United States for the district

where the vessel may be found, seized, or carried. (R. S. § 2159; Mar. 3, 1911, ch. 231, § 291, 36 Stat. 1167.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 1, 12 Stat. 340.

§ 333. Building vessels to engage in cooly trade; penalty.

Every person who so builds, fits out, equips, loads, or otherwise prepares, or who sends to sea, or navigates, as owner, master, factor, agent, or otherwise, any vessel, belonging in whole or in part to a citizen of the United States, or registered, enrolled, or licensed within the same, knowing or intending that such vessel is to be or may be employed in that trade, contrary to the provisions of section 331 of this title, shall be liable to a fine not exceeding $2,000, and be imprisoned not exceeding one year. (R. S. § 2160.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 2, 12 Stat. 340.

§ 334. Punishment for engaging in cooly trade.

Every citizen of the United States who, contrary to the provisions of section 331 of this title, takes on board of any vessel, or receives or transports any such subjects as are described in that section, for the purpose of disposing of them in any way as therein prohibited, shall be liable to a fine not exceeding $2,000 and be imprisoned not exceeding one year. (R. S. § 2161.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 3, 12 Stat. 340.

§ 335. Voluntary emigration of "coolies" excepted.

Nothing contained in sections 135, 331–334, and 337 of this title shall be deemed to apply to any voluntary emigration of the subjects specified in section 331 of this title, or to any vessel carrying such person as passenger on board the same, but a certificate shall be prepared and signed by the consul or consular agent of the United States residing at the port from which such vessel may take her departure, containing the name of such person, and setting forth the fact of his voluntary emigration from such port, which certificate shall be given to the master of such vessel; and the same shall not be given until such consul or consular agent is first personally satisfied by evidence of the truth of the facts therein contained. (R. S. § 2162.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 4, 12 Stat. 341.

§ 336. Same; inquiry and certificate by consular officer.

In determining whether the immigration of any subject of China, Japan, or any oriental country, to the United States, is free and voluntary, as provided by section 335 of this title, it shall be the duty of the consul general or consul of the United States residing at the port from which it is proposed to convey such subjects, in any vessels enrolled or licensed in the United States, or any port within the same, before delivering to the masters of any such vessels the permit or certificate provided for in such section, to ascertain whether such immigrant has entered into a contract or agreement for a term of service within the United States, for lewd and immoral purposes; and if there be such contract or agreement, the said consul general or consul shall not deliver the required permit or certificate. (Mar. 3, 1875, ch. 141, § 1, 18 Stat. 477.)

§ 337. Examination of vessels.

The President is empowered, in such way and at such time as he may judge proper, to direct the vessels of the United States, and the masters and commanders thereof, to examine all vessels navigated or owned in whole or in part by citizens of the United States, and registered, enrolled, or licensed under the laws thereof, whenever in the judgment of such master or commanding officer, reasonable cause exists to believe that such vessel has on board any subjects of China, Japan, or other oriental country, known as "coolies"; and, upon sufficient proof that such vessel is employed in violation of the preceding provisions, to cause her to be carried, with her officers and crew, into any port or district within the United States, and delivered to the marshal of such district, to be held and disposed of according to law. (R. S. § 2163.)

DERIVATION

Act Feb. 19, 1862, ch. 27, § 6, 12 Stat. 341.

§ 338. Involuntary transportation of Chinese, Japanese, etc., for purpose of holding to service; penalty; contracts void.

If any citizen of the United States, or other person amenable to the laws of the United States, shall take, or cause to be taken or transported, to or from the United States any subject of China, Japan, or any oriental country, without their free and voluntary consent, for the purpose of holding them to a term of service, such citizen or other person shall be liable to be indicted therefor, and, on conviction of such offense, shall be punished by a fine not exceeding $2,000 and be imprisoned not exceeding one year; and all contracts and agreements for a term of service of such persons in the United States, whether made in advance or in pursuance of such illegal importation, and whether such importation shall have been in American or other vessels, are hereby declared void. (Mar. 3, 1875, ch. 141, § 2, 18 Stat. 477.)

§ 339. Contracting to supply cooly labor.

If any person shall knowingly and willfully contract, or attempt to contract, in advance or in pursuance of such illegal importation, to supply to another the labor of cooly or other person brought into the United States in violation of section 331 of this title, or of any other section of the laws prohibiting the cooly trade, such person shall be deemed guilty of a felony, and, upon conviction thereof, in any United States court, shall be fined in a sum not exceeding $500 and imprisoned for a term not exceeding one year. (Mar. 3, 1875, ch. 141, § 4, 18 Stat 477.)

Chapter 9.—MISCELLANEOUS PROVISIONS

§§ 351–416. Repealed or transferred.

These sections, relating to naturalization, were in large degree affected by the Nationality Act of 1940, section 501 et seq. of this title. That act was passed on Oct. 14, 1940, to consolidate and restate the laws of the United States regarding citizenship, naturalization, and expatriation.